

24PSCV02426 24PSCV02426

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Case Number: 24PSCV02426 Hearing Date: June 30, 2026 Dept: H

Aza, et al. v. Soria,

Case No. 24PSCV02426

ORDER ON

PETITION TO APPROVE MINOR'S COMPROMISE

Petitioner Luis Adrian Becerra's

Petition to Approve Minor's Compromise of Pending Action [i.e., as to Jaswriy

Becerra Aza] is GRANTED.

Background

Plaintiffs

Hailei Mairany Becerra Aza, Luis Adolfo Becerra Aza and Jaswriy Becerra Aza, a minor, by and through his Guardian ad Li tern, Luis Becerra (together, "Plaintiffs") sustained injuries and damages in an August 30, 2022 motor vehicle accident while traveling eastbound on Vine Avenue in West Covina.

On July

29, 2024, Plaintiffs filed a complaint, asserting causes of action against Anthony Salvador Soria ("Soria") and Does 1-20 for: (1) Motor Vehicle and (2) General Negligence.

On

October 9, 2025, Soria filed a cross-complaint, asserting causes of action against Roes 1-50 for: (1) Implied and Equitable Indemnity, (2) Contribution, and (3) Declaratory Relief.

A Case

Management Conference is set for June 30, 2026.

Legal

Standard

Court

approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.)

California Rules of Court, rule 7.950 provides that a petition “must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise . . .” (See Cal. Rules of Court, rule 7.950.) Rule 7.950 states that the Petition must be filed on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350).)

Discussion

Petitioner

Luis Adrian Becerra (“Petitioner”) seeks Court approval of a settlement between Claimant Jaswriy Becerra Aza (“Claimant”) and Soria. (Petition, ¶¶ 2 and 10). Petitioner is Claimant’s parent and guardian ad litem. (Id., ¶ 1).

The petition

is executed by Petitioner and counsel. The petition erroneously represents that the claim is not the subject of a pending action or proceeding. (Id., Paragraph 3(a).) The petition states that the subject accident occurred on August 30, 2022 at 3:30 p.m. at Vine Avenue and Novarro Street in West Covina and involved Claimant, Hailei Mairany Becerra Aza, Luis Adolfo Becerra and Soria. (Id., ¶ 4). The petition subsequently states that the subject accident occurred when Claimant “and Plaintiffs Hailei Mairany Becerra Aza and Luis Adrian Becerra were traveling eastbound on Vine Avenue” and collided with Soria’s Caterpillar skid steer loader, also traveling eastbound on Vine Avenue, when Soria made an unsafe turning movement toward the north curb of Vine Avenue. (Id., ¶ 5). It appears that Luis Adolfo Becerra and Luis Adrian Becerra are the same individual.

Claimant

sustained swelling of the left cheek, a nose fracture, and right hip pain as a result of the accident. (Id., ¶ 6.) She was transported by the City of West Covina Fire Department to USC Arcadia Hospital, where she was treated and examined. (Id., ¶ 7.) Claimant received additional evaluation and treatment from Michael S. Agron, M.D., Inc., and Arcadia Radiology Medical Group. (Id.) Claimant has recovered completely from the effects of the injuries and there are no permanent injuries. (Id., ¶ 8.)

Soria

has offered to pay Claimant and Petitioner \$14,333.00 each and to pay Hailei Mairany Becerra Aza \$14,334.00. (Id., ¶¶ 10 and 11.) Although Petitioner represents that he has a claim against Claimant's recovery, he subsequently represents that he was in the same accident as Claimant, that he resolved his claim against Soria without effect on Claimant's proposed compromise and that the settlement amounts were based on relative medical treatment, medical specials and general damages. (Id., ¶ 11, Attachment 11b(2).)

Claimant

incurred \$10,564.21 in medical expenses. (Id., ¶ 12.) The total amount claimed under liens is \$10,539.82, but the lienholders have agreed to accept \$4,772.61. (Id., Attachment 12b(5).) Medi-Cal paid \$24.39 and has agreed to accept reimbursement in the amount of \$18.30 in full satisfaction of its lien rights. (Id., Attachment 12b(4)(c).) The total medical expenses to be paid from the proceeds is \$4,790.91. (Id.)

Petitioner

requests that the Court approve payment of \$3,583.25 for attorney's fees, plus payment of \$164.44 for costs. (Id., ¶ 13, Attachment 13(a).) Petitioner has provided the Court with a declaration from Malek H. Shraibati ("Shraibati"), and a copy of the retainer agreement, written and executed in Spanish, along with a translated copy in English. (Id., ¶¶ 13 and 17, Attachments 13a and 17a.)

Shraibati

seeks a contingency fee of 25%. (Id., ¶ 13, Attachment 13(a).) In the absence of a fee agreement previously approved by the court, "the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a

disability.” (Cal. Rules of Court, rule 7.955(a)(1).) “The court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made . . . (Cal. Rules of Court, rule 7.955(a)(2).) Shraibati’s declaration sufficiently addresses the factors enumerated in California Rules of Court, rule 7.955(b). [FN] Counsel has received attorney’s fees in addition to that requested in this petition for services provided in connection with the claim giving rise to this petition; specifically, \$6,449.85 was paid by Petitioner and \$6,450.30 was paid by Hailei Mairany Becerra Aza. (Id., ¶ 17). Counsel did not become concerned with this matter, directly or indirectly, at the instance of a party against whom the claim is asserted or a party’s insurance carrier and is not representing or employed by any other party or any insurance carrier involved in the matter. (Id.)

The net balance of proceeds for Claimant after payment of medical expenses and attorney’s fees as set forth above is \$5,794.40, which will be deposited into an insured account at Bank of America, subject to withdrawal only on court authorization. (Id., ¶ 18, Attachment 18b(2).)

[FN] California Rules of Court, rule 7.955(b) reads as follows: “In determining a reasonable attorney’s fee, the court may consider the following nonexclusive factors:

(1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2) The amount of the fee in proportion to the value of the services performed.

(3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4) The amount involved and the results obtained.

(5) The time limitations or

constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements

for representation agreements applicable to particular cases or claims."